

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the	)	Docket No. RM26-4
Interstate Transmission System	)	

COMMENTS OF SPLIGHT INC.

Splight Inc. (“Splight”)¹ respectfully submits these comments in response to the Federal Energy Regulatory Commission’s (“Commission”) Notice Inviting Comments (“Notice”) in the above-referenced proceeding. Splight appreciates the Commission’s leadership in addressing the urgent need to streamline and standardize the interconnection of large loads on the transmission system. We particularly appreciate the agency’s recognition of the potential benefits to be captured through adoption of technological innovation in support of that process, given the rapid growth of demand the Notice attempts to address.

I. COMMUNICATIONS

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II. INTRODUCTION

Founded in 2021, Splight is an international provider of scalable grid technology solutions with operations in North America, Latin America, and Europe. Splight has developed and

¹ splight.com/about-us

deployed a new digital, transmission operating technology that increases transmission capability while also adding reliability and flexibility to the grid's operation. Splight's platform uses advanced computing and real-time controls and communications to, among other things, automatically and dynamically modulate demand or injection on a transmission system in order to accommodate actual system capacity in response to (or in anticipation of) a system failure. This feature, Dynamic Congestion Management ("DCM"), is a type of software-forward advanced contingency response tool that can increase the usable capacity of existing grid assets by removing concerns about large load impact on the grid post contingency. DCM can thereby create interconnection capacity temporarily to accommodate new loads or facilitate outage management while new networks are built out. DCM can remain in place as a visualization tool and extra protective layer, ensuring reliability of grid systems as they continually expand in scale and complexity. Alternatively, this technology can also be used by system operators manage contingencies in real-time by interacting directly with inverter-based resources or loads.

In the letter dated October 23, 2025, entitled *Secretary of Energy's Direction that the Federal Energy Regulatory Commission Initiate Rulemaking Procedures and Proposal Regarding the Interconnection of Large Loads Pursuant to the Secretary's Authority Under Section 403 of the Department of Energy Organization Act*, which attached a draft Advanced Notice of Propose Rulemaking ("ANOPR"), the Department of Energy ("DOE") set out fourteen proposed principles for the Commission to adhere to in a subsequent rulemaking process for the regulation of large load interconnection procedures. In the following comments, Splight offers a recommendation related to the seventh of those principles, as well as a suggestion to facilitate its implementation through the North American Electric Reliability Corporation ("NERC").

III. RESPONSE TO PROPOSED EXPEDITED INTERCONNECTION STUDY FOR CURTAILABLE LARGE LOADS

In Paragraph 24 of the ANOPR, the DOE proposes that the interconnection studies of large loads and hybrid facilities which agree to be curtailable should be expedited (“Seventh Principle”). These loads reduce risks to the grid in a way that warrants such treatment; not only should they receive expedited treatment but should be analyzed for their actual impact on the grid. Splight strongly supports this principle and respectfully urges the Commission to go further by explicitly recognizing the value of large loads that implement advanced, automated contingency response technologies (“Fast-Responding Loads”) as a basis for both (1) expedited interconnection and (2) allocation of increased capacity in proportional to the speed and amount of curtailment a load is able to provide. Splight’s DCM technology exemplifies the type of reliability-enhancing mechanism that can be relied upon by utilities and system operators to address transmission adequacy and system security as they seek to integrate new large loads.

Resource Adequacy Benefits of Traditional Flexible Loads Warrant Expedited Study and Additional Non-Firm Capacity

Today, there are multiple methods and mechanisms for loads to respond within several seconds or up to several hours to address resource adequacy, or the availability of energy and certain reserve services (generally referred to as “Flexible Loads”). Flexible Loads should indeed be considered for expedited interconnection as *non-firm* loads, if they are willing and able to respond to the availability of energy and ancillary services for their operation, at least until networks can be built out. This would allow such loads to come online sooner than they would ordinarily. Additional capacity for curtailable load would tie the speed of curtailment to the relevant most limiting transmission line rating (e.g., Flexible Loads with a 10-minute response

time could receive capacity proportional to the capacity increase allotted with the 15-minute emergency rating). This is already a common practice in some jurisdictions.

Transmission Resilience Benefits of Fast-Responding Loads Justify Increased Capacity Allocation

Where transmission adequacy is the fundamental limitation, Fast-Responding Loads should be studied based on their ability to modify demand near-instantaneously in the event of a transmission system failure (for example, Splight's DCM can respond in less than 500 milliseconds) and, should be considered for expedited interconnection as *firm loads*. Fast-Responding Loads offer an alternative pathway to maintain adherence to the N-1 or N-1-1 planning and operating criteria, while expanding load service. In effect, Fast-Responding Loads have no or reduced impact on an N-1 condition, because of their ability to absent themselves before a system failure impacts remaining system assets post contingency. By incorporating this advanced responsiveness, Fast-Responding Loads allow the system to operate at up to the full physical capacity of the grid, except in the rare event of a system failure, thus freeing enough of the system capacity to serve double the amount of demand interconnected. Accordingly, with agreement of the system operator, ratings on the transmission line system serving one or more Fast-Responding Loads (and/or generation assets with similar capabilities) can be increased. That newly created contingent capacity can be allocated to the Fast-Responding Load(s). Because contingencies are generally infrequent, Fast-Responding Loads are significantly less likely to be interrupted than Flexible Loads. Potentially, never.

While the large loads would lead adoption of the needed technical capability required, collaboration between the large load and utility is required to implement this type of solution: the software monitors the status of the wider grid and responds to contingencies if and when they

occur, while the utility (and ISO if any) can maintain full visibility and access. Because the additional usable capacity is created using software and real-time controls, there is minimal cost, making this option attractive—even if used only temporarily while the system is returned to the level of physical asset redundancy required to achieve N-1 without active asset management. Further, any utility cost for participating in these technology solutions can be paid for by the load as a discretionary service under the existing FERC tariff. This ensures that other rate payers are not picking up the bill for implementation of this contingent interconnection technology. Using low-cost, high-tech software solutions such as Splight’s DCM platform, by accelerating the interconnection of Fast-Responding Large Loads, also allow the utility to begin collecting revenues from the load even as the network expansion is underway, again minimizing any concerns about cross subsidies by existing customers.

Summary of Splight Recommendations Related to the Seventh Principle

The capabilities described above directly align with the goal of the Seventh Principle. By incorporating the fast-responding capabilities of such technologies into interconnection studies, system operators will more accurately model the reliability impacts and contributions of large loads. As such, Splight recommends that the Commission adopt a framework that:

1. **Recognizes automated contingency response systems** as a valid and enforceable basis for limiting their potential impact on the grid and granting Fast-Responding Loads expedited study as firm loads under the Seventh Principle;
2. **Incorporates performance-based criteria to analyze and allocate additional capacity** for Flexible Loads and Fast-Responding Loads; and

3. **Encourages innovation and technology solutions** that enhance reliability, increase asset utilization, and reduce interconnection timelines.

This approach would not only support the DOE and Commission's objectives of timely and efficient interconnection but also promote grid modernization and economic development by enabling large loads to come online faster and with more capacity without compromising reliability.

IV. RECOMMENDATION FOR MODIFICATION OF FERC OPEN ACCESS TARIFF

Additionally, the Commission should explore the potential for embedding a performance incentive in the current transmission tariff that would reward a transmission owner/operator for the adoption of technology and/or practices that increase the useful and usable capacity of existing transmission systems, even as a bridge to completion of new transmission infrastructure, or for participation with a large load and/or ISO adopting technology to achieve those same ends. Developing the capability to manage, enable or participate in the real-time management of Fast-Responding Loads—those capable of responding quickly enough to protect the bulk electric system pre-, and even post-contingency—should be rewarded. It allows the utility to accelerate the interconnection of loads while the system is being built out, moves the revenue stream forward years, and thereby assures smaller existing consumers are not paying the burden of system build out. As noted, Fast-Responding Loads can pay for the implementation of the systems required on their own site and for enabling data access by the utility, as a discretionary service under the existing FERC tariff. Unlike transmission protection schemes, the more Fast-Responding Loads (and inverter-based resources) that are interconnected and managed by such advanced transmission operating systems, the more reliable the system will become.

V. RECOMMENDATION FOR ADDITIONAL DIRECTIVE TO NERC

To further address barriers to large load integration and the proliferations of advanced contingency management solutions, we urge the Commission to direct NERC to clarify its standards and definitions. First, NERC should interpret that the implementation by large loads of advanced contingency response capability, i.e., those using intelligent algorithms and real-time computing to self-operate without necessitating breaker action, are **not** considered Remedial Action Schemes (RAS). The software that provides this type of contingency response for qualifying Fast-Responding Loads should simply be viewed as a means of advanced load responsiveness. It does not violate existing protection schemes and is not centrally controlled by the utility. This enabling control technology differs fundamentally from utility implemented, traditional, pre-programmed RAS and should not be constrained by PRC-012-2 compliance requirements as currently written. This interpretation would remove a major obstacle to deploying innovative solutions that enhance transmission capability and system resilience.

If NERC does not expeditiously adopt this interpretation, then at the very least, NERC should take measures to allow large load owners to propose, own, and manage RAS directly. Current rules omit large load owners from eligibility as RAS-Entities, forcing reliance on transmission owners to submit application. Allowing qualified large loads to directly manage and implement RAS actions such as dynamic load reduction (in cooperation with their utility), would improve reliability and accelerate infrastructure development without compromising bulk electric system security.

VI. CONCLUSION

Splight commends the Commission for its forward-looking approach in this Notice and urges it to explicitly recognize the role of advanced contingency response technologies in enabling the reliable and efficient interconnection of Fast-Responding Loads. By doing so, the Commission can help unlock significant transmission capacity, reduce interconnection backlogs, relieve consumer cross-subsidies, and support the nation's growing demand for electricity in a secure and sustainable manner.

Respectfully submitted,

/s/ Helen Kemp

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